

HCS HB 1791 -- BUILDING PERMIT APPLICATIONS

SPONSOR: Murphy

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Standing Committee on Commerce by a vote of 8 to 0. Voted "Do Pass" by the Standing Committee on Rules-Administrative by a vote of 9 to 0.

The following is a summary of the House Committee Substitute for HB 1791.

This bill requires a political subdivision to grant a building permit within a certain number of days, depending on the type of construction, as specified in the bill.

After an applicant submits an application to a political subdivision, the political subdivision must notify the applicant in writing of any missing information within five business days. If the political subdivision does not provide a timely written notice that the applicant has not submitted a properly completed application, the application will be automatically deemed completed and accepted.

A political subdivision must maintain on the political subdivision's website, a policy for building permits required by law to be expedited. If a political subdivision fails to meet a deadline established by this bill, the building permit fee will be reduced by 10% for each business day that the political subdivision fails to meet the deadline, unless the delay is caused by or agreed to in writing by the applicant.

A political subdivision must provide written notice to an applicant stating the specific reasons a permit fails to satisfy state law or local ordinances. The notice will state that the applicant has 10 business days to submit revisions to correct the permit application, and that failure to correct the application within that time will result in a denial of the application. If the applicant submits revisions within 10 days, the political subdivision will have 10 business days to approve or deny the permit. If the political subdivision fails to respond within the 10 days, the building permit fee will be reduced by 20% each business day that the political subdivision fails to meet the deadline, unless the delay is caused by or agreed to in writing by the applicant.

The bill also allows for a contractor rebuilding in an area that has been destroyed by a natural disaster resulting in the Governor proclaiming a state of emergency for that area to work without a permit for 30 days. However, after 30 days, the contractor must apply for all necessary permits to continue work. This will not, however, be construed to exempt the construction from any other existing state law or local ordinance related to safety requirements for construction.

This bill is similar to HB 1256 (2025).

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPOSERS: Supporters say that this bill addresses a practical issue that contractors deal with on a daily basis. Permit issuing delays affect construction projects, business planning, jobs, and community development. This bill will help avoid such issues.

Testifying in person for the bill were Representative Murphy; Barry Goldwater Institute for Public Policy Research; Associated Builders and Contractors, Heart of America; and Arnie Dienoff.

OPPOSERS: Those who oppose the bill say that the health and safety of residents should be the first priority, but this bill does not do that. Instead, the bill allows for permits to be automatically issued without review and allows for all the permits needed for a project to be issued at one time, which may lead to a single permit for everything for a construction project. Some voiced concern that there should be a permitting process during emergency disaster relief.

Testifying in person against the bill were AIA-Missouri; Missouri Municipal League; Municipal League of Metro St. Louis; and Dave Helmick, City of Jefferson City.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.